

RESOLUTION NO. 20250422C

RESOLUTION AUTHORIZING THE ISSUANCE AND
SALE OF NOT TO EXCEED \$8,665,000
TAXABLE GENERAL OBLIGATION PROMISSORY NOTES, SERIES 2025B

WHEREAS, it is necessary that funds be raised by the Village of Elm Grove, Waukesha County, Wisconsin (the “Village”) for the purpose of paying the cost of a Tax Incremental District No. 3 development incentive payment (the “Incentive Payment”) and there are insufficient funds on hand to pay said costs;

WHEREAS, the Village hereby finds and determines that the Incentive Payment is within the Village’s power to undertake and serves a “public purpose” as that term is defined in Section 67.04(1)(b) of the Wisconsin Statutes;

WHEREAS, villages are authorized by the provisions of Section 67.12(12) of the Wisconsin Statutes to borrow money and to issue general obligation promissory notes for such public purposes; and

WHEREAS, the Village Finance Director (in consultation with the Village’s financial advisor) shall cause an Official Notice of Sale to be distributed, offering the aforesaid general obligation promissory notes for public sale.

NOW, THEREFORE, BE IT RESOLVED by the Village Board of the Village that:

Section 1. Authorization of the Notes; Parameters. For the purpose of paying the cost of the Incentive Payment, there shall be borrowed from a purchaser (the “Purchaser”) selected through a competitive sale with the assistance and counsel of the Village’s financial advisor, Ehlers and Associates, Inc., pursuant to Chapter 67 of the Wisconsin Statutes, the principal sum of not to exceed EIGHT MILLION SIX HUNDRED SIXTY-FIVE THOUSAND DOLLARS (\$8,665,000), provided that: (i) the price paid by the Purchaser for the Notes shall not be less than 98.75% nor more than 110.00% of the par amount of the Notes, (ii) the true interest rate to be paid on the Notes (taking the Purchaser’s compensation into account) shall not exceed 6.00%; and (iii) the Notes shall comply in all other respects with the terms provided herein.

Section 2. Sale of the Notes; Delegation of Authority with Respect to Final Approval. Subject to such Final Approval (defined below), to evidence such indebtedness, the Village President and Village Clerk are hereby authorized, empowered and directed to make, execute, issue and sell to the Purchaser for, on behalf of and in the name of the Village, taxable general obligation promissory notes aggregating the principal amount of not to exceed EIGHT MILLION SIX HUNDRED SIXTY-FIVE THOUSAND DOLLARS (\$8,665,000) (the “Notes”). The issuance and sale of the Notes to the Purchaser is subject to final approval by the Village Manager or Finance Director. Such final approval shall be evidenced by the execution of an